

Court No. - 9

Case :- WRIT - C No. - 65760 of 2009

Petitioner :- Badri Prasad Misra

Respondent :- State Of U.P. & Others

Petitioner Counsel :- Hari Shanker

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Vijay Manohar Sahai, J.

Hon'ble Yogesh Chandra Gupta, J.

The short question that arises for consideration in this petition is that when an electric connection of a consumer is temporarily disconnected, whether the power corporation can charge the minimum guarantee for a period of about eight years or only for a period of six months from the date of temporary disconnection.

We have heard learned counsel for the petitioner, learned standing counsel appearing for respondent nos.1 and 2 and Sri Rajesh Tripathi, learned counsel appearing for respondent no.3. Counsels for respondents pray for and are allowed on month time to file counter affidavit. Three weeks thereafter to the petitioner for filing rejoinder affidavit. List thereafter

The facts are that the petitioner had taken a domestic electric connection from the respondents being connection no.016352 sequence no.2128. The load sanctioned to the petitioner was 1 kilowatt. The power connection of the petitioner was disconnected on 16.03.2001 as the petitioner could not deposit his bill of Rs.7704-00.

Learned counsel for the petitioner has placed reliance on the provisions of clause 4.37 and 4.38 which is quoted below:-

"4.37 (a) The licensee shall, after a connection is temporarily disconnected, bill a consumer on minimum

charges, and also issue a notice, as per format given in Annexure-4.9, to the consumer, to remove the cause of disconnection, failing which, the supply shall be disconnected permanently after six months. Such connections shall be treated as dormant connections (awaiting final account), and the billing shall be stopped after carrying out inspections and duly informing the consumer, and final account of the consumer shall be prepared.

(b) Wherever licensee discovers that connection has been connected unauthorisedly after temporary disconnection, licensee may initiate action as per provisions of Section 138 of the Act.

4.38 Permanent Disconnection:

(i) The supply shall be disconnected permanently in following cases:

(a) With the termination of the agreement.

(b) If the cause for which the supply was temporarily disconnected is not removed within six months period.

(c) On request of consumer as described under section 4.14 (g).

(ii) If the dues are not paid by the consumers the surcharge payable by the consumer on dues shall be levied up to the period of issue of Section 5 notice, or for maximum eight months only."

In the instant case the electric supply was disconnected on 16.3.2001. The U.P. Electricity Supply Code, 2005 came into force on 18.2.2005. Code 2005 would be applicable on or after 18.2.2005 but prior to it the provisions of Electricity Supply (Consumers) Regulations, 1984 would be applicable. Regulation 17 (i), (ii) and (iii) of the aforesaid Regulations is extracted below:-

" 17. **Agreement-** (i) The consumer shall enter into a formal declaration/agreement for a minimum period of two years but taking electrical energy before release of supply. After expiry of the above period of two years, the declaration/agreement will continue on year to year basis on the same terms and conditions unless terminated in accordance with the provisions of the declaration/agreements.

All consumers shall execute declaration/agreements governing supply of energy in the form prescribed by the Board from time to time.

(ii) If the supply to a consumer is disconnected on request or in default before compulsory period of two years is over, he shall be liable for payment of minimum charge for the remaining period by which it falls short of two years or for the period of six months from the date of disconnection whichever is less, together with the estimated expenditure on the erection and demolition of the sub station and the line (not paid by the consumer) actually dismantled due to the disconnection, together with the estimated expenditure on the cartage of the salvaged materials to stores and the cost of unsalvaged materials plus 15% supervision charges, on the labour and cartage only.

(iii) If after expiry of compulsory period of two years a consumer is disconnected in default and he fails to get his connection reconnected within six months, the supplier shall serve one month's notice to the consumer to get the connection reconnected failing which the service could stand permanently disconnected, the consumer shall be liable to pay the entire dues up to the date of which it is declared by the supplier to have been permanently disconnected."

We do not find as to what was the date of agreement between the parties. Whether notice as provided by Regulation 17(iii) of the Regulations, 1984 was issued by the respondents and served on the petitioner, if yes, copy of the notice and its receipt shall be filed by the respondent no.3. What is the effect of deposit of Rs.15000/- on 31.3.2006 with the Power Corporation by the petitioner. Once the electric supply of the petitioner was temporarily disconnected on 16.03.2001 then why the Power Corporation after six months did not permanently disconnected the electric supply of the petitioner and thereafter immediately proceed to recover the amount from the petitioner. If the recovery of electricity dues was delayed for the fault of Power Corporation then why the

petitioner be saddled with minimum charge for a period of eight years. All these aspects shall be explained by the respondent no.3 in the counter affidavit.

Until further orders of this court the recovery proceedings in pursuance of citation issued by the respondents demanding a sum of Rs.34,174/- from the petitioner Annexure-4 to the writ petition shall remain stayed.

Order Date :- 3.12.2009

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